VIANU

TEMPLATE: DATA PROCESSING AGREEMENT

Under Art. 28 GDPR, for the pilot with VIANU

How to use this

This template governs processing in the pilot, in which VIANU acts for the employer. Fill in the passages in square brackets for your company.

Between

[Company name, address] (the "Controller")
and
SIGMA WORKS GmbH (brand VIANU), Grabenstrasse 5, 40878 Ratingen, Germany, HRB 114864, Dusseldorf Local Court, represented by Roderich Körner-Rehn, Managing Director (the "Processor").

1. Subject matter and duration

The subject matter is the processing of data in the pilot with custom-made insoles for up to 10 employees of the Controller. The duration follows the pilot and ends when the results report is handed over. [Period until evaluation: to be set by the parties.]

2. Nature and purpose of processing, type of data, data subjects

The purpose is to make the insoles and to produce the anonymized results report. The data processed are photos of the feet (6 photos per foot capture), name and company logo for the engraving, the delivery location and four answers from the participants at the end of the pilot. The data subjects are the Controller's employees who take part.

3. Instructions

The Processor processes the data only on documented instructions from the Controller, unless a law requires other processing. It informs the Controller if it considers an instruction unlawful.

4. Confidentiality

The Processor obliges all persons with access to the data to keep it confidential.

5. Technical and organizational measures

The Processor takes measures under Art. 32 GDPR. These include: access to photos and production details only for the people who make the insole, no access for the Controller to photos, data security agreed by contract with SELFWEAR (confidentiality, integrity, availability), deletion of the photos after production.

6. Sub-processors

Approved are: SELFWEAR GmbH, Venloer Straße 440, 50825 Cologne, Germany (measuring the feet from the photos and modeling the insole) and a manufacturing partner for 3D printing in Germany. The Processor names the manufacturing partner to the Controller on request before the start. It binds sub-processors to

the same duties and informs the Controller in advance of changes. The Controller may object for good cause.

7. Assistance to the Controller

The Processor assists the Controller with requests from data subjects, with data protection impact assessments and with notifications under Art. 33 and 34 GDPR. It reports personal data breaches without undue delay.

8. Audit

The Processor provides the Controller with the information needed to show compliance and allows reviews by arrangement.

9. Return and deletion

The photos are deleted after production. Survey answers are deleted after the results report is handed over. What has flowed into the learning system of SELFWEAR AI no longer allows conclusions about individual persons.

10. Liability

For damage from the processing, Art. 82 GDPR and the statutory rules apply.

11. Final provisions

Changes require text form. If a provision is invalid, the rest of the agreement stays valid. German law applies.

Place, date
For the Controller: _____
For the Processor: _____